

25STCV35343 25STCV35343

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Case Number: 25STCV35343 Hearing Date: June 26, 2026 Dept: 316

BACKGROUND

Plaintiff Lisette Real alleges

she was discriminated against by her employer, Defendant California Department of State Hospitals. Plaintiff was allegedly discriminated against because of her disability.

On December 4, 2025, Plaintiff
filed her original complaint against Defendant.

On February 18, 2026, Plaintiff filed her
first amended complaint ("FAC") against Defendant. The FAC alleges six causes
of action based on the facts alleged above.

On March 20, 2026, Defendant
filed a demurrer to Plaintiff's FAC.

On May 19, 2026, Plaintiff
filed an opposition.

On June 22, 2026, Defendant
filed a reply.

TENTATIVE RULING

Defendant's
demurrer to Plaintiff's first and fifth causes of action is SUSTAINED with

leave to amend.

Defendant's

demurrer to Plaintiff's second, third, fourth, and sixth causes of action is OVERRULED.

Plaintiff

has twenty (20) days to file and serve any amended complaint.

Defendant's

Motion to Strike is GRANTED in part. The motion is granted as to paragraphs

41, 54, 69, 92 and 105 in the FAC without leave to amend as to Defendant and the motion is denied as to paragraph 75.

LEGAL

STANDARD

"[A]

demurrer tests the legal sufficiency of the allegations in a complaint." (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (See Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (See Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Note,

"to state a cause of action against a public entity, every fact material to the existence of its statutory liability must be pleaded with particularity." (Peter W. v. San Francisco Unified School District (1976) 60 Cal.App.3d 814, 819.) Similarly, actions brought under the Fair Employment and Housing Act ("FEHA") must also be plead with specificity. (See Fisher v. San Pedro Peninsula Hospital (1989) 214 Cal.App.3d 590, 604 ["Plaintiffs' claims for harassment and retaliation are founded on the provisions of FEHA and are based exclusively on that statutory scheme since FEHA is not a codification of preexisting common law. [Citation] Accordingly, we apply the general rule that facts in

support of each of the requirements of a statute upon which a cause of action is based must be specifically pled.”.)

Where

a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy*, (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully.

(*Ibid.*; see also

Lewis v. YouTube, LLC, (2015)

244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (*Youngman v. Nevada Irrigation Dist.*, (1969) 70 Cal.2d 240, 245).

DISCUSSION

I.

Meet

and Confer

Before

filing a demurrer, the demurring or moving party shall meet and confer with the party who has filed the pleading in

person, by telephone, or by video conference. (Code Civ. Proc. § 430.41, subd.

(a).) Afterwards, the demurring

or moving party must file a declaration detailing their meet

and confer efforts. (Code Civ. Proc., § 430.41, subd. (a)(3).)

“A determination by the court that

the meet and confer process was insufficient shall not be grounds to overrule

or sustain a demurrer.” (Code Civ. Proc., § 430.41, subd. (a)(4).)

Here, Defendant’s

counsel met and conferred with Plaintiff’s counsel via email. (See Nair Decl.,

¶¶ 3-8.) The parties did not meet and confer in person, by telephone, or by video conference. Therefore, the meet and confer requirement has not been satisfied.

(See Code Civ. Proc., § 430.41, subd. (a).) However, the Court shall still

evaluate the merits of Defendant’s demurrer. (See Code Civ.

Proc., § 430.41, subd. (a)(4).)

II.

Cause

of Action No. 1 – Disability Discrimination

The

Court finds that Plaintiff failed to allege that Defendant took an adverse employment action against her because of an actual or perceived disability. For this reason, the demurrer to the first cause of action is SUSTAINED.

To

state a claim for disability discrimination under FEHA, the plaintiff must allege: (1) they have a disability or medical condition or are regarded as suffering from a disability; (2) they could perform the essential duties of the job with or without reasonable accommodations; (3) adverse employment action was made against plaintiff by the defendant; and (4) said adverse action was made because of plaintiff's actual or perceived disability or medical condition. (See *Faust v. Cal. Portland Cement Co.* (2007) 150 Cal.App.4th 864, 886.) The plaintiff must also allege that the defendant-employer had knowledge of their disability. (See *Sandell v. Taylor-Listug, Inc.* (2010) 188 Cal.App.4th 297, 314.)

What

constitutes an adverse employment action is not susceptible to a mathematically precise test but is one that materially affects the terms and conditions of employment, considering the complainant's collective allegations and the totality-of-the-circumstances. (*Brown v. Los Angeles Unified Sch. Dist.* (2021) 60 Cal.App.5th 1092, 1106.) Adverse employment actions can include demotions, reassignments, refusals to promote, unwarranted evaluations, tolerating harassment by coworkers, reprimands and suspensions. (See *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1061.) However, an employer's failure to provide reasonable accommodation is not an adverse employment action. (See *Miller v. Department of Corrections & Rehabilitation* (2024) 105 Cal.App.5th 261, 276.)

Under

FEHA, someone is physically disabled if the individual: (1) has a physiological condition that both (a) affects a specific bodily system and (b) limits a major life activity; (2) has a "record or history of" such a physiological condition; or (3) is "regarded or treated by" the individual's employer as having, or having had, any condition that makes achievement of a major life activity

difficult, or as having, or having had, a physiological condition that is not presently disabling, but that may become so. (See Gov. Code, § 12926, subds. (m)(1)(A-B), (3), (4), (5).) A physiological condition “limits” a major life activity if it makes the achievement of said activity difficult. (See id. at subd. (m)(1)(B)(ii).) “‘Major life activities’ shall be broadly construed and includes physical, mental, and social activities and working.” (Id. at subd. (m)(1)(B)(iii).)

Here,

Defendant contends Plaintiff failed to allege that Defendant knew about Plaintiff’s disability or that it was ever informed of Plaintiff’s disability. (See Demurrer, p. 8:14)

The FAC

states that “On February 18, 2025, PLAINTIFF’S physician submitted a letter indicating that PLAINTIFF had been diagnosed with Post-Traumatic Stress Disorder due to the emotional distress caused in part by DEFENDANTS’ refusal to ensure PLAINTIFF’S safety at work.” (FAC, ¶ 20.) Contrary to Defendant’ assertion, this allegation is not conclusory or vague. Rather, it clearly states that Plaintiff’s physician informed Defendant of Plaintiff’s alleged disability. Accordingly, the Court finds that this allegation meets heightened pleading standard. (See *Peter W. v. San Francisco Unified School District* (1976) 60 Cal.App.3d 814, 819; *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

Defendant

also contends Plaintiff did not show how her PTSD diagnosis limited a major life activity so as to qualify as a disability pursuant to FEHA. (See Demurrer, p. 8:20-22.)

In the

FAC, Plaintiff alleges that her PTSD diagnosis forced her into an involuntary leave of absence from work at her physician’s recommendation. (See FAC, ¶ 20.) Being forced to take a leave of absence from work shows that Plaintiff’s PTSD diagnosis made the achievement of a major life activity difficult. (See Gov. Code, § 12926, subds. (m)(1)(B)(ii-iii).) Therefore, Plaintiff has alleged that her PTSD diagnosis limited a major life activity so as to qualify as a disability pursuant to FEHA.

Lastly,

Defendant contends Plaintiff failed to allege she was subjected to adverse

employment action because of her disability. (See Demurrer, p. 9:5-9.)

The

FAC states that Defendant became aware of Plaintiff's disability on February 18, 2025. (See FAC, ¶ 20.) This is the date on which Defendant's received a letter from Plaintiff's physician regarding her disability. (See *ibid.*) Thus, any adverse employment action must have occurred sometime after this date to qualify as disability discrimination. However, Plaintiff does not allege any adverse employment action occurred after this date. Plaintiff does allege that Defendant failed to make reasonable accommodation, but this in itself does not rise to the level of adverse employment action. (See FAC, ¶¶ 21-23; see also *Miller v. Department of Corrections & Rehabilitation* (2024) 105 Cal.App.5th 261, 276 ["The refusal to participate in the interactive process or refusal to provide a reasonable accommodation 'do not constitute "adverse employment actions" in the context of a claim of discrimination."'"].) Furthermore, Plaintiff being forced to take an involuntary leave of absence also does not rise to the level of adverse employment action. (See FAC, ¶ 20.) First, Plaintiff took this involuntary leave of absence before Defendant became aware of her PTSD diagnosis. (See *ibid.*) Second, Defendant did not force Plaintiff to take said leave of absence. Rather, the FAC states that Plaintiff took the leave of absence at her physician's recommendation. (See *ibid.*) Therefore, Plaintiff's leave of absence is not demonstrative of an adverse employment action.

In

short, although Plaintiff alleged she suffered from a qualified disability and that Defendant was aware of said disability, Plaintiff did not allege that Defendant took adverse employment action against Plaintiff because of the disability. Thus, the FAC fails to state this cause of action. (See *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) For this reason, the demurrer to the first cause of action is SUSTAINED.

Plaintiff

is granted leave to amend. In an amended complaint, Plaintiff must allege some adverse employment action taken by Defendant because of her disability. Said adverse employment action must have occurred after Defendant allegedly became aware of Plaintiff's disability and must be more than simply failing to provide reasonable accommodation.

III.

Cause

of Action No. 2 – Failure to Provide Reasonable Accommodation

The

Court finds that Plaintiff has sufficiently alleged that she attempted to secure accommodation due to a disability. For this reason, the demurrer to the second cause of action is OVERRULED.

To

state a cause of action for failure to provide reasonable accommodation, the plaintiff must allege: (1) they have a disability or medical condition or are regarded as suffering from a disability; (2) they could perform the essential duties of a sought reassigned job with or without reasonable accommodation; and (3) the employer failed to reasonably accommodate. (See *Wilson v. County of Orange* (2009) 169 Cal.App.4th 1185, 1193.) Reasonable accommodation means “a modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired.” (See *Scotch v. Art Institute of California-Orange County, Inc.* (2009) 173 Cal.App.4th 986, 994.)

Here,

Defendant contends Plaintiff failed to allege that she attempted to secure accommodation due to a disability. (See Demurrer, pp. 10:25-11:6.)

The

FAC alleges that while Plaintiff was on forced leave, and after Defendant became aware of her disability, Plaintiff requested a modified work schedule with a telework component. These requests were due to her disability. Plaintiff made these requests to Defendant’s Human Resources Manager. These requests were ultimately denied twice. (See FAC, ¶ 21 (a-c).) Later, Defendant’s Executive Director again told Plaintiff that her requests were denied and that she should request reasonable accommodation through the EEO Coordinator. However, Plaintiff had already reached out to the EEO Coordinator, and they told her to reach out to HR, which Plaintiff had already done. (See FAC, ¶ 22.)

Contrary

to Defendant’s position, these allegations are sufficient and not conclusory. They detail Plaintiff’s specific efforts to secure reasonable accommodation. They set forth who Plaintiff reached out to, how many times she reached out to these

individuals, and that ultimately her requests were denied. Therefore, the Court finds that Plaintiff has sufficiently alleged that she attempted to secure accommodation due to a disability and was denied. For this reason, the demurrer to this cause of action is OVERRULED.

IV.

Cause

of Action No. 3 – Failure to Engage in a Timely, Good Faith Interactive Process

The

Court finds that Plaintiff has alleged the elements of the third cause of action and the demurrer to this cause of action is therefore OVERRULED.

Employers

and employees are required to engage in communications in good faith towards exploring reasonable accommodations as to a known disability, unless futile. (See *Claudio v. Regents of Univ. of Cal.* (2005) 134 Cal.App.4th 224, 249.) In order to state a cause of action, the plaintiff must allege: (1) they have a known disability; (2) they requested a reasonable accommodation or their employer was aware of a need for accommodation; (3) the employer failed to engage in a timely, good faith, interactive process to determine effective reasonable accommodations; (4) a reasonable accommodation was available when the interactive process should have occurred; and (5) the employer is responsible for the breakdown in the interactive process. (See *Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 54, 62; see also *Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 379.)

Here,

Defendant contends Plaintiff failed to allege that Defendant was on notice of Plaintiff's disability. Defendant also asserts that Plaintiff also failed to allege that she discussed an accommodation with a direct supervisor, human resources, or an accommodations coordinator. Defendant argues that Plaintiff failed to allege that she was specifically seeking a modified schedule due to a disability. (See Demurrer, p. 12:5-10.)

As

stated earlier, Defendant was allegedly put on notice of Plaintiff's disability after her physician sent a letter discussing the matter. (See FAC, ¶ 20.) Plaintiff allegedly also requested a modified work schedule specifically due to her disability. (See *id.* at ¶ 21(a).) Plaintiff's supervisor

allegedly approved of the modified work schedule and confirmed that Plaintiff would still be able to perform her essential job duties. (See *ibid.*) Despite this, Plaintiff alleges her requests for reasonable accommodation were denied by Defendant's HR Manager, Executive Director, and EEO staff. (See *id.* at ¶ 21-22.) Lastly, Plaintiff alleges that Defendant's attempts to engage in the interactive process were futile because Defendant's Executive Director told her to seek reasonable accommodation via the EEO office. However, Plaintiff had already reached out to the EEO office by this point, and they just redirected her to HR which had already denied her requests. (See *id.* at ¶ 22.)

Plaintiff

has thus alleged: (1) Defendant was aware of Plaintiff's disability; (2) Plaintiff made multiple requests for a modified work schedule because of her disability; (3) Defendant failed to engage in the interactive process by directing Plaintiff to speak with individuals who had already denied her request; and (4) a reasonable accommodation (i.e., modified work schedule) was available when the process should have occurred. This meets each of the necessary elements for this cause of action. (See *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) For this reason, the demurrer to the third cause of action is **OVERRULED**.

V.

Cause

of Action No. 4 – Failure to Prevent Discrimination, Harassment, and Retaliation

The

Court finds that Plaintiff has not sufficiently alleged Defendant failed to prevent discrimination. However, Plaintiff has sufficiently alleged that Defendant failed to prevent harassment. Therefore, the demurrer to the fourth cause of action is **OVERRULED**.

California

Government Code section 12940, subdivision (k) states that employers are required to take all reasonable steps necessary to prevent unlawful discrimination from occurring. To state a cause of action for failure to prevent discrimination or harassment, the plaintiff must allege: (1) actionable discrimination or harassment by employees or non-employees; (2) defendant's legal duty of care toward plaintiff (i.e., defendant is plaintiff's employer); (3) breach of that duty (failure to

take all reasonable steps necessary to prevent discrimination and harassment from occurring); (4) legal causation; and (5) damages to plaintiff. (See *Trujillo v. No. County Transit Dist.*, (1998) 63 Cal.App.4th 280, 287, 289.) Once an employer is informed of any workplace harassment, they must take immediate and appropriate action reasonably calculated to end said harassment. (See *Bradley v. Department of Corrections & Rehabilitation* (2008) 158 Cal.App.4th 1612, 1630.) However, without a specific factual finding of harassment, discrimination, or retaliation, an employer cannot be liable for failure to take the necessary steps. (See *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 288-89; see also *Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 880.)

Here,
Defendant contends that Plaintiff failed to allege any facts of disability discrimination, thus it cannot be held liable for failure to prevent said discrimination. (See *Demurrer*, p. 13:9-11.)

The
FAC alleges that Defendant failed to prevent both discrimination and harassment. The alleged discrimination stems from Defendant's failure to provide reasonable accommodation. The alleged harassment stems from allegations relating to Bowman's behavior towards Plaintiff, Defendant becoming aware of said behavior and failing to respond to it, and Defendant's failure to enforce a court-issued restraining order against Bowman. (See FAC, ¶ 75.)

Failure
to provide reasonable accommodation cannot form the basis for disability discrimination. (See § II [citing *Miller v. Department of Corrections & Rehabilitation* (2024) 105 Cal.App.5th 261, 276].) Therefore, because Plaintiff does not sufficiently allege any other basis for disability discrimination, her claim for failure to prevent discrimination cannot stand. (See *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 288-89.) However, Plaintiff alleges harassment by Bowman to the point that Plaintiff secured a restraining order against Bowman. (See FAC, ¶¶ 12-16.) Defendants were allegedly made aware of Bowman's harassment and the restraining order and are alleged to have failed to prevent the harassment or enforce the restraining order. (See *id.* at ¶¶ 16-19.) These allegations are sufficient to meet the elements of a cause of action for failure to prevent harassment. (See *Trujillo v. No. County Transit Dist.*, (1998) 63 Cal.App.4th 280, 287,

289.) For this reason, the demurrer to this cause of action is OVERRULED.

VI.

Cause

of Action No. 5 – Employment Discrimination on the Basis of Victim Status

The

Court finds that Plaintiff failed to allege that any adverse employment action by Defendant stemmed from Plaintiff's victim status. Accordingly, the demurrer to his cause of action is SUSTAINED.

"An

employer shall not discharge or in any manner discriminate or retaliate against an employee because of the employee's status, or the employee's family member's status, as a victim if the employee provides notice to the employer of the status or the employer has actual knowledge of the status." (Gov. Code § 12945.8, subd. (d).) To state a claim of discrimination on the basis of victim status, the plaintiff must state: (1) they are a member of a protected class; (2) they qualified for the position sought or was performing competently in the position already held; (3) they suffered an adverse employment action; and (4) some other circumstance suggests discriminatory motive. (See *Brown v. Los Angeles Unified School Dist.* (2021) 60 Cal.App.5th 1092, 1105.)

What

constitutes an adverse employment action is not susceptible to a mathematically precise test but is one that materially affects the terms and conditions of employment, considering the complainant's collective allegations and the totality-of-the-circumstances. (*Brown v. Los Angeles Unified Sch. Dist.* (2021) 60 Cal.App.5th 1092, 1106.) Adverse employment actions can include demotions, reassignments, refusals to promote, unwarranted evaluations, tolerating harassment by coworkers, reprimands and suspensions. (See *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1061.) However, an employer's failure to provide reasonable accommodation is not an adverse employment action. (See *Miller v. Department of Corrections & Rehabilitation* (2024) 105 Cal.App.5th 261, 276.)

Here,

Defendant contends Plaintiff fails to allege that she suffered from any adverse employment action based on her victim status. (See Demurrer, p. 13: 14-21.)

The

FAC states that Defendant took adverse employment action against Plaintiff by “refusing to provide a safe work environment, refusing to enforce a restraining order, denying PLAINTIFF’s repeated requests for accommodation in the form of telework or a modified schedule, and constructively forcing PLAINTIFF onto an involuntary, unpaid leave of absence since December 17, 2024.” (FAC, ¶ 88.)

First,

Defendant’s alleged failure to reasonably accommodate Plaintiff by refusing to allow a modified work schedule is not an adverse employment action. (See *Miller v. Department of Corrections & Rehabilitation* (2024) 105 Cal.App.5th 261, 276.) Second, Plaintiff does not allege that Defendant forced Plaintiff to take involuntary leave of absence; that was allegedly done at Plaintiff’s physician’s recommendation. (See FAC, ¶ 20.) Therefore, this cannot be considered an adverse employment action by Defendant. Finally, Defendant’s alleged failure to provide a safe working environment and enforce the restraining order could be adverse employment action given the circumstances of this case. (See *Brown v. Los Angeles Unified Sch. Dist.* (2021) 60 Cal.App.5th 1092, 1106.) However, Plaintiff makes only conclusory allegations that Defendant’s adverse employment action was done because of Plaintiff’s victim status. (See FAC, ¶ 24 [“PLAINTIFF is informed and believes and based thereon alleges that DEFENDANTS intentionally and willfully took the aforementioned adverse employment actions and subjected her to disparate treatment because of . . . her victim status.”]; see also *id.* at ¶ 88 [“PLAINTIFF’s status was a substantial motivating factor in DEFENDANTS’ adverse employment actions against PLAINTIFF. . . .”].) These allegations do not meet the heightened pleading standard. (See *Peter W. v. San Francisco Unified School District* (1976) 60 Cal.App.3d 814, 819; see also *Fisher v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.) There are many reasons why an employer might fail to provide a safe working environment or enforce a restraining order (e.g., negligence, incompetence, miscommunication). Plaintiff has not made sufficient allegations that Defendant’s adverse employment action was done because of her victim status. Thus, the FAC fails to state a cause of action. (See *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747.) For this reason, the demurrer to the fifth cause of action is SUSTAINED.

Plaintiff

is granted leave to amend to allege a closer nexus between Defendant’s alleged adverse

employment action and her victim status.

VII.

Cause

of Action No. 6 – Failure to Provide Reasonable Accommodation

The

Court holds that Plaintiff sufficiently alleged that Defendant failed to provide reasonable accommodation to her stemming from her victim status. Accordingly, the demurrer to this cause of action is OVERRULED.

An

employer must provide reasonable accommodation to an employee who is a victim of a qualifying act of violence and who requests an accommodation for their safety while at work. (See Gov. Code § 12945.8, subd. (e)(1).) “For purposes of this subdivision, reasonable accommodations may include the implementation of safety measures, including a transfer, reassignment, modified schedule, changed work telephone, permission to carry telephone at work, changed work station, installed lock, assistance in documenting domestic violence, sexual assault, stalking, or another qualifying act of violence that occurs in the workplace, an implemented safety procedure, or another adjustment to a job structure, workplace facility, or work requirement in response to domestic violence, sexual assault, stalking, or other qualifying act of violence, or referral to a victim assistance organization.” (Id. at subd. (e)(2).)

Here,

Defendant contends the “FAC does not indicate that an accommodation request for either disability status or victim status was ever formally made with respect to the limited duty telework requests made to human resources. Nor does the FAC plead that Defendant ever rejected an actual accommodation request; at most, the FAC highlights that Plaintiff’s limited duty telework requests were not granted. The FAC also does not plead that Plaintiff made any accommodation request for her safety at her work location.” (Demurrer, p. 14:1-7.)

The

FAC alleges that Defendant became aware of Plaintiff’s victim status on November 15, 2024, the date on which Defendant was allegedly given a copy of the restarting order against Bowman. (See FAC, ¶ 16.) Afterward, Plaintiff alleges she pleaded with Defendant to ensure her safety from Bowman, but Defendant just directed Plaintiff to contact her supervisor if she came across Bowman. (See

id. at ¶ 18.) Plaintiff asked Defendant to put Bowman on administrative leave while an investigation was conducted into Bowman's behavior – Defendants refused to do so. (See id. at ¶ 19.) Plaintiff also requested a modified work schedule. And although Plaintiff states that the request was made due to her disability, it appears from the allegations that a significant reason for the request was to avoid Bowman. (See id. at ¶ 21(a) [alleging that the proposed modified work schedule would have Plaintiff come into office when Bowman was scheduled to be off].

Plaintiff

alleges she made multiple accommodation requests because of her victim status and that said requests were to secure her safety. Plaintiff also alleges that Defendant denied all these requests. Given these allegations, the FAC states a cause of action. For this reason, the demurrer to this cause of action is OVERRULED.

VIII. Motion to Strike

Here,

Defendant requests the Court strike Plaintiff's request for punitive damages stemming from her third cause of action under Government Code section 818.

Government

Code section 818 says that "a public entity is not liable for damages awarded under Section 3294 of the Civil Code or other damages imposed primarily for the sake of example and by way of punishing the defendant." Given this language, Plaintiff may not be awarded punitive damages against Defendant. For this reason, any requests for punitive damages against Defendant under Civil Code section 3294 shall be stricken.

The

motion to strike is granted as to paragraphs 41, 54, 69, 92 and 105 in the FAC.

The

motion is denied as to paragraph 75 in the FAC.

CONCLUSION

For

the foregoing reasons, Defendant's demurrer to Plaintiff's first and fifth

causes of action is SUSTAINED with leave to amend.

Defendant's

demurrer to Plaintiff's second, third, fourth, and sixth causes of action is OVERRULED.

Defendant's

Motion to Strike is GRANTED in part. The motion is granted as to paragraphs 41, 54, 69, 92 and 105 in the FAC without leave to amend as to Defendant and denied as to paragraph 75.

Plaintiff has twenty

(20) days to file and serve any amended complaint.